

The Employees' Pension Scheme, 1995

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Union of India - Act

The Employees' Pension Scheme, 1995

UNION OF INDIA

India

The Employees' Pension Scheme, 1995

Rule THE-EMPLOYEES-PENSION-SCHEME-1995 of 1995

Published on 16 November 1995

Commenced on 16 November 1995

[This is the version of this document from 16 November 1995.]

[Note: The original publication document is not available and this content could not be verified.]

The Employees' Pension Scheme, 1995

Published Vide G.S.R. 748(E), dated 16.11.1995, published in the Gazette of India, Ext., Point II, Section 3(i), dated 16.11.1995

Last Updated 24th February, 2020 [9/509]

In exercise of the powers conferred by section 6-A of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 (

19 of 1952

), the Central Government hereby makes the following Scheme, namely:

1.

Short title, commencement and application.

(1)

This Scheme may be called The [Employees' Pension]

[Substituted by Notification No. G.S.R. 300(E), dated 29.3.2017 (w.e.f. 16.11.1995).]

Scheme, 1995.

(2)

(a)

This Scheme shall come into force on 16th day of November, 1995;

(b)

Subject to the provisions of this Scheme the employees have an option to become the members of the Scheme with effect from the 1st April, 1993.

(3)

Subject to the provisions of section 16 of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 (19 of 1952

), this Scheme shall apply to the employees of all factories and other establishments to which the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 (

19 of 1952

) applies or is applied under sub-section (3) or sub-section (4) of section 1 or section 3 thereof.

2.

Definitions.

- In the Scheme, unless the context otherwise requires,

(i)

"Act" means the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 (

19 of 1952

);

(ii)

"actual service" means the aggregate of periods of service rendered from the 16th November, 1995 or from the date of joining any establishment whichever is later to the date of exit from the employment of the establishment covered under the Act;

(iii)

"Commissioner" means a Commissioner for Employees' Provident Funds appointed under section 5-D of the Act;

(iv)

"contributory service" means the period of "actual service" rendered by a member for which the contributions to the fund have been [received or are receivable]

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

;

(v)

"eligible member" means an employee who is eligible to join the Employees' Pension Scheme;

(vi)

"existing member" means an existing employee who is a member of the Employees' Family Pension Scheme, 1971;

(vii)

"family" means

(i)

wife, in the case of male member of the Employees' Pension Fund;

(ii)

husband, in the case of a female member of the Employees' Pension Fund; and

(iii)

sons and [* * *]

[The words " unmarried" omitted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

daughters of a member of the Employees' Pension Fund;

Explanation. - The expression "sons" and "daughters" shall include children [legally adopted by the member.]

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

(viii)

"pension" means the pension payable under the Employees' Pension Scheme and also includes the family pension admissible and payable under the Employees' Family Pension Scheme, 1971 immediately preceding the commencement of the Employees' Pension Scheme, 1995 with effect from the 16th November, 1995;

(ix)

"member" means an employee who becomes a member of the Employees' Pension Fund in accordance with the provisions of this Scheme.

[Explanation.-

[Inserted by G.S.R. 66, dated 22.2.1999 (w.e.f. 6.3.1999).]

An employee shall cease to be the member of Pension Fund from the date of attaining 58 years of age or from the date of vesting admissible benefits under the Scheme, whichever is earlier;]

(x)

"non-contributory service" is the period of "actual service" rendered by a member for which no contribution to the "Employees' Pension Fund" has been [received or are receivable]

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

;

(xi)

"orphan" means a person, none of whose parents is alive [* * *]

[The words " and is in receipt of monthly widow/widower pension" omitted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

;

(xii)

"past service" means the period of service rendered by an existing member from the date of joining Employees' Family Pension Fund till the 15th November, 1995;

(xiii)

"pay" means basic wages, with dearness allowance, retaining allowance and cash value of food concessions admissible, if any;

(xiv)

"Pension Fund" means the Employees' Pension Fund set up under sub-section (2) of section 6-A of the Act;

(xv)

"pensionable service" means the service rendered by the member for which contributions have been [received or are receivable]

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

;

(xvi)

["permanent total disablement" means such disablement of permanent nature as incapacitates an employee for all work which he/she was capable of performing at the time of disablement, regardless whether such disablement is sustained in the course of employment or otherwise]

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

;

(xvii)

"Table" means Table appended to this Scheme;

(xviii)

The words and expressions defined in the Act but not defined in this Scheme shall have the same meaning as assigned to them in the Act.

3.

Employees' Pension Fund.

(1)

From and out of the contributions payable by the employer in each month under section 6 of the Act or under the rules of the Provident Fund of the establishment which is exempted either under clauses (a) and (b) of sub-section (1) of section 17 of the Act or whose employees are exempted under either paragraph 27 or paragraph 27-A of the Employees' Provident Funds Scheme, 1952, a part of contribution representing 8.33- per cent. of the employees' pay shall be

remitted by the employer to the Employees' Pension Fund within 15 days of the close of every month by a separate bank draft or cheque on account of the Employees' Pension Fund contribution in such manner as may be specified in this behalf by the Commissioner. The cost of the remittance, if any, shall be borne by the employer.

(2)

The Central Government shall also contribute at the rate of 1.16 per cent. of the pay of the members of the Employees' Pension Scheme and credit the contribution to the Employees' Pension Fund:

Provided that where the pay of the member exceeds [rupees six thousand and five hundred]

[Substituted by G.S.R. 383(E), dated 24.5.2001, for " rupees five thousand" (w.e.f. 1.6.2001).]

per month the contribution payable by the employer and the Central Government be limited to the amount payable on his pay of [rupees six thousand and five hundred]

[Substituted by G.S.R. 383(E), dated 24.5.2001, for " rupees five thousand" (w.e.f. 1.6.2001).]

only.

(3)

Each contribution payable under sub-paragraphs (1) and (2) shall be calculated to the nearest rupee, fifty paise or more to be counted as the next higher rupee and fraction of a rupee less than fifty paise to be ignored.

(4)

The net assets of the Family Pension Scheme, 1971 shall vest in and stand transferred to the Employees' Pension Fund.

4.

Payment of contribution.

(1)

The employer shall pay the contribution payable to the Employees' Pension Fund in respect of [each member]

[Substituted by G.S.R. 134, dated 28.2.1996, for " the member" (w.e.f. 16.3.1996).]

of the Employees' Pension Fund employed by him directly or by or through a contractor.

(2)

It shall be the responsibility of the principal employer to pay the contributions payable to the Employees' Pension Fund by himself in respect of the employees directly employed by him and also in respect of the employees employed by or through a contractor:

[Provided that the Central Government shall pay the contribution payable to the Employees' Pension Fund in respect of an employee who is a person with disability under the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 (1 of 1996) and under the National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 1999 (

44 of 1999

) respectively, up to a maximum period of three years from the date of commencement of membership of the Fund.]

[Inserted by G.S.R. 252(E), dated 31.3.2008 (w.e.f. 1.4.2008).]

5.

Recovery of damages for default in payment of any contribution.-

[(1) Where a employer makes default in the payment of any contribution to the Employees' Pension Fund, or in the payment of any charges payable under any other provisions of the Act or the Scheme, the Central Provident Fund Commissioner or such officer as may be authorized by the Central Government by notification in the Official Gazette in this behalf, may recover from the employer by way of penalty, damages at the rates given in the table below:-

SL.No

Period of default

Rate of damages (Percentage of arrears per annum)

(1)

(2)

(3)

(a)

Less than two months

Five

(b)

Two months and above but less than four months

Ten

(c)

Four months and above but less than six months

Fifteen

(d)

Six months and above

Twenty-five.

]

(2)

The damages shall be calculated to the nearest rupee, fifty paise or more to be counted as the nearest higher rupee and fraction of a rupee Less than fifty paise to be ignored.

6.

[Membership of the Employees' Pension Scheme.

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

- Subject to sub-paragraph (3) of paragraph 1, this Scheme shall apply to every employee,

(a)

who on or after the 16th November, 1995 becomes a member of the Employees' Provident Funds Scheme, 1952 or of the Provident Funds of the factories and other establishments exempted by the appropriate Government under section 17 of the Act, or in whose case exemption has been granted under paragraph 27 or 27-A of the Employees' Provident Funds Scheme, 1952, from the date of such membership;

(b)

who has been a member of the ceased Employees' Family Pension Scheme, 1971 before the commencement of this Scheme from 16th November, 1995;

(c)

who ceased to be a member of the Employees' Family Pension Scheme, 1971, between 1st April, 1993, and 15th November, 1995, and opts to exercise his option under paragraph 7;

(d)

who has been a member of the Employees' Provident Fund or of Provident Funds of Factories and other establishments exempted by the appropriate Government under section 17 of the Act or in whose case exemption has been granted under paragraph 27 or 27-A of the Employees' Provident Fund Scheme, 1952, on 15th November, 1995, but not being a member of the ceased Employees' Family Pension Scheme, 1971, opts to exercise his option under paragraph 7.]

[Substituted by G.S.R. 688(E), dated 26.9.2008 (w.e.f. 26.9.2008).]

6A.

[Retention of membership.

[Inserted by G.S.R. 66, dated 22.2.1999 (w.e.f. 6.3.1999).]

- A member of the Employees' Pension Fund shall continue to be such member till he attains the age of 58 years or he avails the withdrawal benefit to which he is entitled under para 14 of the Scheme, or dies, or the pension is vested in him in terms of para 12 of the Scheme, whichever is earlier.]

7.

[Option for joining the Scheme.

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

(1)

Members referred to under sub-paragraph (c) of paragraph 6 who have died between 1st April, 1993 and 15th November, 1995 shall be deemed to have exercised the option of joining the Scheme on the date of his death.

(2)

Members referred to in sub-paragraph (c) of paragraph 6 who are alive shall have the option to join the Scheme as per the provisions of paragraph 17 from the date of exit from the employment.

(3)

Members referred to in sub-paragraph (d) of paragraph 6 shall have the option to join the Scheme as per the provisions of paragraph 17 from 16th November, 1995.]

8.

Resolution of doubts.

- If any doubt arises whether an employee is entitled to become a member of the Employees' Pension Fund, the same shall be referred to the Regional Provident Fund Commissioner who shall decide the same:

Provided that both the employer and the employee shall be heard before passing final order in the matter.

9.

Determination of eligible service.

- The eligible service shall be determined as follows:

(a)

In the case of "new entrant" the "[contributory service]

[Substituted "actual service" by Notification No. G.S.R. 226(E), dated 26.3.2015 (w.e.f. 16.11.1995).]

" shall be treated as eligible service. The total [contributory service]

[Substituted "actual service" by Notification No. G.S.R. 226(E), dated 26.3.2015 (w.e.f. 16.11.1995).]

shall be rounded off to the nearest year. The fraction of service for six months or more shall be treated as one year and the service less than six months shall be ignored.

Explanation. - In the case of employees employed seasonally in any establishment the period of "[contributory service]

[Substituted "actual service" by Notification No. G.S.R. 226(E), dated 26.3.2015 (w.e.f. 16.11.1995).]

" in any year, notwithstanding that such service is less than a year shall be treated as a full year.

(b)

In the case of the "existing member" the aggregate of [contributory service]

[Substituted "actual service" by Notification No. G.S.R. 226(E), dated 26.3.2015 (w.e.f. 16.11.1995).]

and the "past service" shall be treated as eligible service:

Provided that if there is any period in the "past service" for which the contributions towards the Family Pension Scheme, 1971 has not been received, the said period shall count as eligible service only if the contributions thereof have been received in the Employees' Pension Fund.

[Explanation.

[Substituted by G.S.R. 594(E), dated 21.8.2009 (w.e.f. 21.8.2009).]

-For the purpose of this sub-paragraph, the aggregate of [contributory service] and past service for less than six months shall be ignored and six months and above shall be rounded off to a year.]

10.

Determination of pensionable service.

(1)

The pensionable service of the member shall be determined with reference to the contributions [received or receivable]

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

on his behalf in the Employees' Pension Fund.

(2)

In the case of the member who superannuates on attaining the age of 58 years, [and]

[Substituted " and/or" by Notification No. G.S.R. 546 (E) dated 23.7.2009 (w.e.f. 16.11.1995)]

who has rendered 20 years pensionable service or more, his pensionable service shall be increased by adding a weightage of 2 years.

11.

Determination of pensionable salary.

(1)

Pensionable salary shall be the average monthly pay drawn [in any manner including on piece-rate basis]

[Inserted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

during the contributory period of service in the span of 12 months preceding the date of exit from the membership of the Employees' Pension Fund:

[Provided that if a member was not in receipt of full pay during the period of twelve months preceding the day he ceased to be the member of Pension Fund, the average of previous 12 months full pay drawn by him during the period for which contribution to the pension fund was recovered, shall be taken into account as pensionable salary for calculating pension.]

[Inserted by G.S.R. 66, dated 22.2.1999 (w.e.f. 6.3.1999).]

(2)

If during the said span of 12 months there are non-contributory periods of service including cases where the member has drawn salary for a part of the month, the total wages during the 12 months' span shall be divided by the actual number of days for which salary has been drawn and the amount so derived shall be multiplied by 30 to work out the average monthly pay.

(3)

The maximum pensionable salary shall be limited to [rupees six thousand and five hundred/Rs. 6,500]

[Substituted by G.S.R. 774(E), dated 8.10.2001, for " rupees five thousand/Rs.5,000" (w.r.e.f. 1.6.2001).]

per month:

[Provided that if at the option of the employer and employee, contribution paid on salary exceeding [rupees six thousand and five hundred/Rs. 6,500]

[Added by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

[per month from the date of commencement of this Scheme or from the date salary exceeds [rupees six thousand and five hundred/Rs. 6,500]

[Added by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

[whichever is later, and 8.33 per cent share of the employers thereof is remitted into the Pension Fund, pensionable salary shall be based on such higher salary.]

[Added by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

12.

[Monthly member's pension.

[Substituted by G.S.R. 431(E), dated 15.6.2007 (w.r.e.f. 16.11.1995)]

(1)

A member shall be entitled to

(a)

superannuation pension, if he has rendered eligible service of 10 years or more and retires on attaining the age of 58 years;

(b)

early pension, if he has rendered eligible service of 10 years or more and retires or otherwise ceases to be in the employment before attaining the age of 58 years.

(2)

In the case of a new entrant, the amount of monthly superannuation pension or early pension, as the case may be, shall be computed in accordance with the following factors, namely:

Pensionable salary x Pensionable service

Monthly member's pension

=

70

(3)

In the case of an existing member in respect of whom the date of commencement of pension is after the 16th November, 2005,

(i)

Superannuation or early pension shall be equal to the aggregate of:

(a)

pension as determined under sub-paragraph 42) for the period of pensionable service rendered from the 16th November, 1995 or Rs. 635 per month, whichever is more;

(b)

past service pension shall be as given below:

The past service pension payable on completion of 58 years of age on 16th November, 1995.

Sl.No.

Years of past service

Salary upto Rs.2,500 per month

Salary more than Rs 2,500 per month

(1)

(2)

(3)

(i)

Upto 11 years

80

85

(ii)

More than 11 years but upto 15 years

95

105

(iii)

More than 15 years but less than 20 years

120

135

(iv)

Beyond 20 years

150

170

The amount under column (2) or column (3) above, as the case may be, shall be multiplied by the factor given in Table "B" corresponding to the period between the 16th November, 1995 and the date of exit to arrive at past service pension payable.

(ii)

The aggregate of (a) and (b) calculated as above shall be subject to a minimum of Rs. 800 per month, provided the eligible service is 24 years. Provided further, if it is less than 24 years, the pension as computed above shall be reduced proportionately subject to a minimum of Rs. 450 per month.

(4)

In the case of an existing member and in respect of whom the date of commencement of pension is between the 16th November, 2000 and the 16th November, 2005,

(i)

Superannuation or early pension shall be equal to the aggregate of-

(a)

pension as determined under sub-paragraph (2) for the period of service rendered from the 16th November, 1995 or Rs. 438 per month, whichever is more;

(b)

past service pension as provided in sub-paragraph (3).

(ii)

The aggregate of (a) and (b) calculated as above shall be subject to a minimum of Rs. 600 per month, provided the eligible service is 24 years. Provided further, that if it is less than 24 years the pension shall be proportionately less subject to the minimum of Rs. 325 per month.

(5)

In the case of an existing member and in respect of whom the date of commencement of pension is before the 16th November, 2000,

(i)

The superannuation or early pension shall be equal to the aggregate of:

(a)

pension as determined under sub-paragraph (2) for the period of service rendered from the 16th November, 1995 or Rs. 335 per month, whichever is more;

(b)

past service pension as provided in sub-paragraph (3).

(ii)

The aggregate of (a) and (b) calculated as above shall be subject to the minimum of Rs. 500 per month, provided the eligible service is 24 years. Provided further, if it is less than 24 years the pension shall be proportionately lesser but subject to a minimum of Rs. 265 per month.

(6)

Except as otherwise expressly provided hereinafter, the monthly member's pension under sub-paragraphs (2) to (5) mentioned hereinabove, as the case may be, shall be payable from a date immediately following the date of completion of 58 years of age notwithstanding that the member has retired or ceased to be in the employment before that date.

(7)

A member, if he so desires, may be allowed to draw an early pension from a date earlier than 58 years of age, but not earlier than 50 years of age. In such cases, the amount of pension shall be reduced at the rate of [four per cent.], for every year the age falls short of 58 years.]

[Substituted by G.S.R. 431(E), dated 15.6.2007 (w.r.e.f. 16.11.1995)]

(7A)

[The monthly member's pension including any relief payable to any existing or future member under this paragraph shall not be less than one thousand rupees [* * *]

[Inserted by Notification No. G.S.R. 593 (E) dated 19.8.2014 (w.e.f. 1.9.2014)]

.]

[Provided that, on and from the 1st day of September, 2014, the minimum pension of one thousand rupees payable under this sub-paragraph shall be subject to-

[Inserted by Notification No. G.S.R. 603(E), dated 16.6.2016 (w.e.f. 16.11.1995).]

(i)

deductions on account of benefits of commutation and return of capital taken by members under the extant provisions of this scheme prior to 26th September, 2008; and

(ii)

deductions on account of early pension under sub-paragraph (7).]

(7B)

[(a) A member who has attained the age of fifty-eight years and is otherwise eligible for pension under clause (a) of sub-paragraph (1) of this paragraph, if he so desires, may be allowed to defer the age of drawing pension later than fifty-eight years but not beyond sixty years of age.

(b)

In such cases as is referred to in clause (a),-

(i)

the amount of pension shall be increased at the rate of four per cent. for every completed year after the age of fifty-eight years which shall be restricted to the wage ceiling given under the proviso to sub-paragraph (2) of paragraph 3;

(ii)

the member, at his or her option, may also be allowed to continue contributions under paragraph 3 to the Employees' Pension Fund for the period for which the drawal of pension has been deferred, if the member is continuing in employment after the age of fifty-eight years, and the pensionable service and pensionable salary for the purpose of determination of pension under sub-paragraph (2) will be reckoned taking into account the period for which contributions were made after the age of fifty-eight years but not beyond the age of sixty years;

(iii)

in the event of death of the member, who has opted for deferring the age of drawing pension under this sub-paragraph, after attaining the age of fifty-eight years and before the commencement of the pension so deferred, the family of the member will be entitled to pension under clause (c) of sub-paragraph (1) of paragraph 16 from the date following the date of death of the member as if the member monthly pension had commenced on the date of death of the member.]

(8)

If a member ceases to be in the employment by way of retirement or otherwise earlier than the date of superannuation from which pension can be drawn, the member may, on his option, either be paid pension as admissible under this Scheme on attaining the age exceeding 50 years or he may be issued a scheme certificate by the Commissioner indicating the pensionable service, the pensionable salary and the amount of pension due on the date of exit from the

employment. If he/she is subsequently employed in an establishment coverable under this Scheme, his/her earlier service as per the scheme certificate shall be reckoned for pension alongwith the fresh spell of pensionable service. The member postponing the commencement of payment of pension under this paragraph shall also be entitled to additional relief sanctioned under this scheme from time to time:

[Provided that if the member does not take up an employment coverable under this Scheme and has rendered less than ten years eligible service on the date of exit, but dies before attaining the age of fifty-eight years and before a continuous period of thirty-six months has elapsed during which contributions have not been received in respect of the member in the Pension Fund, the amount of contributions received in his case shall be converted into a monthly widow pension or children pension and the widow pension in such cases shall be calculated at the scale laid down in Table 'C' and the children pension at 25 per cent thereof for each child (upto two):

Provided further that if there is no widow, then the orphan pension shall be payable at the rate of 75 per cent of the amount which would have been payable as a widow pension subject to the provisions of the paragraph 16.

Provided also that if the member does not take up an employment coverable under this Scheme and has rendered less than ten years eligible service on the date of exit, but dies before attaining the age of fifty-eight years after a continuous period of thirty-six months has elapsed during which contributions have not been received in respect of the member in the Pension Fund, the family shall be entitled to benefits under paragraph 14.]

[Substituted by Notification No. G.S.R. 533 (E), dated 19.5.2016 (w.e.f. 16.11.1995).]

12B.

[Restoration to normal pension in cases of grant of commutation.

[Inserted by Notification No. G.S.R. 132(E), dated 20.2.2020 (w.e.f. 16.11.1995).]

– The normal pension in respect of those members who availed the benefit of commutation of pension under the erstwhile paragraph 12A of this Scheme, on or before the 25th day of September, 2008, shall be restored after completion of fifteen years from the date of such commutation.]

[Inserted by Notification No. G.S.R. 440(E), dated 25.4.2016 (w.e.f. 16.11.1995).]

13.

[

[Paras. 12-A and 13 omitted by G.S.R. 688(E), dated 26.9.2008 (w.e.f. 26.9.2008).]

***]

14.

Benefits on leaving service before being eligible for monthly member's pension.

- If a member has not rendered the eligible service prescribed in paragraph [9]

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

on the date of exit, or on attaining 58 years of age whichever is earlier, he/she shall be entitled to a withdrawal benefit as laid down in Table D or may opt to receive the Scheme Certificate provided on the date he/she has not attained the 58 years of age:

Provided that an existing member shall receive additional return of contributions for his/her past service under the Employees' Family Pension Scheme, 1971 computed as withdrawal-cum-retirement benefits as per Table A multiplied by the factor given in Table B.

15.

Benefits on permanent and total disablement during the service.

(1)

A member, who is permanently and totally disabled during the employment shall be entitled to pension as admissible under [paragraph 12]

[Substituted by Notification No. G.S.R. 593 (E) dated 19.8.2014 (w.e.f. 1.9.2014)]

, as the case may be, subject to a minimum of Rs. 250 per month notwithstanding the fact that he/she has not rendered the pensionable service entitling him/her to pension under paragraph 12 provided that he/she has made atleast one month's contribution to the Pension Fund.

(2)

The monthly member's pension in such cases shall be payable from the date following the date of permanent total disablement and shall be tenable for the life-time of the member.

(3)

A member applying for benefits under this paragraph shall be required to undergo such medical examination as may be prescribed by the Central Board to determine whether or not he or she is permanently and totally unfit for the employment which he or she was doing at the time of such disablement.

16.

Benefits to the family on the death of a member.

(1)

[Pension to the Family]

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

shall be admissible from the date following the date of death of the member, if the member dies

(a)

while in service, provided that at least one month's contribution has been

(b)

after the date of exit, but before attaining the age of 58 years, from the employment having rendered service entitling him/her to monthly member's pension but' [before the commencement of pension payment, or]

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

(c)

after commencement of payment of the monthly member's pension.

Note. - The cases where a member has rendered less than 10 years eligible service on the date of exit but has retained the membership of the Pension Fund, and dies before attaining the age of 58 years, shall be regulated under sub-paragraph (8) of paragraph 12.

(2)

(a)

The monthly widow pension shall be

(i)

in the cases covered by clause (a) of sub-paragraph (1) equal to the monthly member's pension, which would have been admissible as if the member had retired on the date of death or Rs. 450 or the amount indicated in Table C whichever is more;

(ii)

in the cases covered by clause (b) of sub-paragraph (1) equal to the monthly member's pension which would have been admissible as if the member had retired on the date of exit or [Rs. 450 per month]

[Substituted by G.S.R. 41, dated 12.1.2000 (w.e.f. 29.2.2000).]

or the amount indicated in Table C, whichever is more;

(iii)

in the cases covered by clause (c) of sub-paragraph (1), equal to 50 per cent. of the monthly member's pension payable to the member on the date of his death subject to a minimum of [Rs. 450 per month]

[Substituted by G.S.R. 41, dated 12.1.2000 (w.e.f. 29.2.2000).]

;

(iv)

[in all the cases, where the amount of family pension sanctioned under the Ceased Family Pension Scheme, 1971 and is paid/payable under this scheme is less than Rs. 450 per month, the amount of family pension in such cases shall be enhanced to Rs. 450 per month;]

[Inserted by G.S.R. 41, dated 12.1.2000 (w.e.f. 29.2.2000).]

(v)

[in all the cases, where the monthly widow pension including relief, if any, is less than one thousand rupees per month, the amount of monthly widow pension in such cases shall be enhanced to one thousand rupees per month [* * *]

[Inserted by Notification No. G.S.R. 593 (E) dated 19.8.2014 (w.e.f. 1.9.2014)]

.]

(b)

The monthly widow pension shall be payable upto the date of death of the widow or re-marriage whichever is earlier.

Note. - In cases where there are two or more widows, family pension shall be payable to the eldest surviving widow. On her death it shall be payable to the next surviving widow, if any. The term "eldest" would mean seniority with reference to

the date of marriage.

(3)

Monthly children pension

(a)

if there are any surviving children of the deceased member, falling within the definition of family, they shall be entitled to a monthly children pension in addition to the monthly widow/widower pension;

(b)

[Monthly children pension for each child shall be equal to 25 per cent of the amount admissible to the widow of the deceased member as monthly widow pension payable under clause (a) of sub-paragraph (2):

[Substituted by Notification No. G.S.R. 593 (E) dated 19.8.2014 (w.e.f. 1.9.2014)]

Provided that the minimum monthly children pension including relief, if any, for each child of the deceased member shall not be less than two hundred and fifty rupees per month [* * *].];

(c)

[monthly children pension shall be payable until the child attains the age of 25 years;]

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

(d)

the monthly children pension shall be admissible to the maximum of two

(e)

[if a member dies leaving behind a family having son or daughter who is permanently and totally disabled such son or daughter shall be entitled to payment of monthly children pension or orphan pension, as the case may be, irrespective of age and number of children in the family in addition to the pension provided under clause (d).]

[Inserted by G.S.R. 66, dated 22.2.1999 (w.e.f. 6.3.1999).]

(4)

[(a) if the deceased member is not survived by any widow, but is survived by children falling within the definition of family or if the widow pension is not payable, the children shall be entitled to a monthly orphan pension equal to 75 per cent of the amount of the monthly widow pension as payable under clause (a) of sub-paragraph (2):

Provided that the minimum monthly orphan pension including relief, if any, for each orphan shall not be less than seven hundred and fifty rupees per month [* * *].]

(aa)

[The monthly orphan pension shall be payable to each orphan till such orphan attains the age of twenty-five years:

[Inserted by Notification No. G.S.R. 387 (E), dated 1.4.2016 (w.e.f. 16.11.1995).]

Provided that the monthly orphan pension shall be payable to an orphan beyond the age of twenty-five years, if such orphan is suffering from disorder or disability of mind or who is physically crippled or disabled.]

[Substituted by Notification No. G.S.R. 593 (E) dated 19.8.2014 (w.e.f. 1.9.2014)]

(b)

In the event of death or re-marriage of the widow/widower after sanctioning of widow/ widower pension the children shall be entitled in lieu of the monthly children pension, to a monthly orphan pension from the date following the date of death/re-marriage of the widow/widower.

(c)

[The monthly orphan pension shall be admissible to a maximum of two orphans at a time and shall run in order from the oldest to the youngest orphan.]

[Inserted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

(5)

(a)

A member who is not married or who does not have any living spouse and/or an eligible child may nominate a person to receive benefits as laid down hereinafter provided that in the event of his/her acquiring a family subsequently, the nomination so made shall become void. In the event of death of the member such a nominee shall be entitled to receive a monthly pension equal to the monthly widow's pension, as admissible under sub-clauses (i) and (ii) of clause (a) of sub-paragraph (2).

(aa)

[If a member dies leaving behind no spouse and/or an eligible child falling within the definition of family and no

nomination by such deceased member exists, the widow pension shall be paid under sub-clauses (i) and (ii) of clause (a) of sub-paragraph (2) either to dependant father or dependant mother as the case may be. On grant of pension to such dependant father and in the event of death of the father pensioner, the admissible pension shall be extended to the surviving mother life long.]

[Inserted by G.S.R. 66, dated 22.2.1999 (w.e.f. 6.3.1999).]

(b)

If the deceased member had not rendered pensionable service on the date of exit from employment which would have made him entitled to a monthly member pension under paragraph 12, but had opted to retain the membership of this Scheme under sub-paragraph (8) of paragraph 12, the [nominee or the dependant father or the dependant mother, as the case may be,]

[Substituted by G.S.R. 66, dated 22.2.1999 (w.e.f. 6.3.1999).]

shall be entitled to [a withdrawal benefit as provided in paragraph 14]

[Substituted for the words "return of capital as provided in sub-paragraph (I) of paragraph 13" by Notification No.G.S.R. 80(E) dated 14.2.2013 (w.e.f. 16.11.1995)]

.

16A.

[Guarantee of pensionary benefits.

[Inserted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

-None of the pensionary benefits under this Scheme shall be denied to any member or beneficiary for want of compliance of the requirements by the employer under sub-paragraph (1) of paragraph 3 provided, however, that the employer shall not be absolved of his liabilities under the Scheme.]

17.

[Payments on exercise of option.

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

(1)

Beneficiaries of the deceased members of Employees' Family Pension Scheme, referred to in sub-paragraph (1) of paragraph 7, shall receive higher of the benefits available under the Employees' Family Pension Scheme, 1971 and under this Scheme.

(2)

Members referred to in sub-paragraph (2) of paragraph 7, shall have the option to join this Scheme by returning the amount of withdrawal benefit received, if any, together with interest at the rate of 8.5 per cent per annum from the date of payment of such withdrawal benefit and date of exercise of the option, to receive monthly pension as per the provisions of this Scheme.

(3)

Members referred to in sub-paragraph (3) of paragraph 7 shall be deemed to have joined the ceased Employees' Family Pension Scheme, 1971, with effect from 1-3-1971 on remittance of past period contribution with interest thereon.]

17A.

[Payment of pension.

[Inserted by G.S.R. 376, dated 27.10.1996 (w.e.f. 18.11.1997).]

- The claims, complete in all respects submitted alongwith the requisite documents shall be settled and benefit amount paid to the beneficiaries within 30 days from the date of its receipt by the Commissioner. If there is any deficiency in the claim, the same shall be recorded in writing and communicated to the applicant within [twenty days] from the date of receipt of such application. In case, the Commissioner fails without sufficient cause to settle a claim complete in all respects within [twenty days]

[Substituted by Notification No. G.S.R. 526(E) dated 2.7.2015, (w.e.f. 16.11.1995).]

, the Commissioner shall be liable for the delay beyond the said period an days, interest at the rate of 12 per cent. per annum may be charged on the benefit amount and the same may be deducted from the salary of the Commissioner.]

18.

Particulars to be supplied by the employees already employed at the time of commencement of the Employees' Pension Scheme.

- Every person who is entitled to become a member of the Employees' Pension Fund shall be asked forthwith by his

employer to furnish and that person shall, on such demand, furnish to him for communication to the Commissioner particulars concerning himself and his family in the form prescribed by the Central Provident Fund Commissioner.

19.

Preparation of contribution cards.

-The employer shall prepare an Employees' Pension Fund Contribution Card, in respect of each employee who has become a member of the Employees' Pension Fund.

20.

Duties of employers.

(1)

Every employer shall send to the Commissioner within three months of the commencement of this Scheme, a consolidated return of the employees entitled to become members of the Employees' Pension Fund showing the basic wage, retaining allowance, if any, and dearness allowance including the cash value of any food concession paid to each of such employees:

Provided that if there is no employee who is entitled to become a member of the Employees' Pension Fund, the employer shall send a "NIL" return.

(2)

Every employer shall send to the Commissioner within fifteen days of the close of each month a return in respect of the employees leaving service of the employer during the preceding month:

Provided that if there is no employee leaving service of the employer during the preceding month the employer shall send a "NIL" return.

(3)

Every employer shall maintain such accounts in relation to the amounts contributed by him to the Employees' Pension Fund as the Central Board may, from time to time, direct and it shall be the duty of every employer to assist the Central Board in making such payments from the Employees' Pension Fund to his employees as are sanctioned by or under the authority of the Central Board.

(4)

Notwithstanding anything contained in this paragraph, the Central Board may issue such directions to the employers generally, as it may consider necessary or expedient, for the purpose of implementing the Scheme, and it shall be the duty of every employer to carry out such directions.

21.

Employer to furnish particulars of ownership.

- Every employer in relation to a factory or other establishment to which the Act applies or is applied hereafter shall furnish to the Commissioner particulars of all the branches and departments, owners, occupiers, directors, partners, managers or any other person or persons who have the ultimate control over the affairs of such factory or establishment and also send intimation of any change in such particulars, within fifteen days of such change, to the Commissioner by registered post.

22.

Duties of contractors.

- Every contractor shall, within seven days of the close of every month, submit to the principal employer a statement showing the particulars in respect of employees employed by or through him in respect of whom contributions to the Employees' Pension Fund are payable and shall also furnish to him such information as the principal employer is required to furnish under the provisions of this Scheme to the Commissioner.

23.

Allotment of account [numbers]

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

.

(1)

For purposes of this Scheme, where the member has already been allotted or is allotted hereafter an account number under the Employees' Provident Funds Scheme, 1952, he shall retain the same account number.

(2)

In the case of employees of the establishments exempted from the Employees' Provident Funds Scheme, 1952, under

section 17 of the Act, who are members of the Employees' Family Pension Fund the account number already allotted shall be retained by them.

(3)

In the case of employees of the establishments exempted from the Employees' Provident Funds Scheme, 1952, under section 17 of the Act, who are not members of the Employees' Family Pension Fund but opt to become members of the employees' Pension Fund and in case of new employees of such establishments, fresh account numbers shall be allotted by the Commissioner.

24.

Declaration by persons taking up employment after the fund has been established.

- The employer shall, before taking any person into employment, ask him/her to state in writing whether or not he/she is a member of the Employees' Pension Fund and, if he/she is, also ask him/her to furnish a copy of the scheme certificate issued by the Commissioner to him/her in respect of the past employment in terms of paragraph 12 as the case may be. If the person concerned was not in employment previously or had availed of return of contribution in respect of his/her previous employment, he/she shall, on demand by the employer, furnish to him, for communication to the Commissioner, particulars concerning him/her and his/her family in the Form prescribed by the Central Provident Fund Commissioner:

[Provided that if such person is a person with disability, the aforesaid Form shall further contain such particulars as are necessary for such person.]

[Inserted by G.S.R. 252(E), dated 31.3.2008 (w.e.f. 1.4.2008).]

25.

Employees' Pension Fund Account.

- The account called the "Employees' Pension Fund Account" shall be opened by the Commissioner in such manner as may be specified by the Central Board with the approval of Central Government.

26.

Investment of the Employees' Pension Fund.

(1)

All moneys accruing to the Employees' Pension Fund Account except the contributions of the Central Government shall be invested in accordance with the provisions of paragraph 52 of the Employees' Provident Funds Scheme, 1952.

(2)

Net assets of the Family Pension Fund as on the 16-11-1995 shall merge in the Pension Fund and remain invested in the Public Account of the Government of India.

The future Central Government's contribution accruing to the Pension Fund from 17th November, 1995 onwards shall also be invested in the Public Account of the Government of India.

27.

Disposal of the Fund.

(1)

Subject to the provisions of the Act and this Scheme, the Fund shall not, except with the prior sanction of the Central Government, be expended for any purpose other than the payments envisaged in this Scheme; for continued payment of family pension, life assurance benefit and retirement-cum-withdrawal benefits sanctioned under the Employees' Family Pension Scheme, 1971 prior to the date of introduction of this Scheme or which may be sanctioned under that Scheme after the 16th November, 1995 in respect of cases arising before the date.

(2)

[All administrative expenses shall be met from the "Central Administration Account" as specified in paragraph 49 of the Employees' Provident Funds Scheme, 1952. However, the cost of remittance of pension shall be charged on the Pension Fund.]

[Substituted by G.S.R. 3, dated 29.12.2006 (w.e.f. 6.1.2007).]

28.

[

[Para. 28 omitted by G.S.R. 3, dated 29.12.2006 (w.e.f. 6.1.2007).]

***]

29.

[Format and manner of maintenance of accounts.

[Substituted by Notification No. G.S.R. 285(E), dated 4.4.2019 (w.e.f. 16.11.1995).]

- The Central Board shall maintain a consolidated income and expenditure account as well as a consolidated balance sheet in respect of the Pension Scheme, in the common format of annual accounts, approved by the Central Government.]

30.

Audit.

- The accounts of the Employees' Pension Fund including the administrative expenses incurred in running this Scheme shall be audited in accordance with the instructions issued by the Central Government in consultation with Comptroller and Auditor-General of India.

31.

Rounding up of the benefits.

- All items of benefits shall be calculated to the nearest rupee, fifty paise or more to be counted as the next higher rupee and fraction of a rupee less than fifty paise shall be ignored.

32.

Valuation of the Employees' Pension Fund and review of the rates of contributions and quantum of the pension and other benefits.

- [(1) The Central Government shall have an annual valuation of the Employees Pension Fund made by a valuer appointed by it]

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

Provided that it shall be open to the Central Government to direct a valuation to be made at such other times as it may consider necessary.

(2)

At any time, when the Employees' Pension Fund so permits, the Central Government may alter the rate of contributions payable under this Scheme or the scale of any benefit admissible under this Scheme or the period for which such benefit may be given.

33.

[Disbursement of pension and other benefits.

[Substituted by Notification No. G.S.R. 437(E), dated 4.5.2017 (w.e.f. 16.11.1995).]

(1)

The Commissioner shall, with the approval of the Central Board, enter into arrangement for the disbursement of pension and other benefits under this Scheme with disbursing agencies like post office or nationalised banks or Treasuries or scheduled commercial banks including regional rural banks or co-operative banks through electronic or digital funds transfer system.

(2)

The Commission payable to the disbursing agencies and other charges incidental thereto shall be met as provided in paragraph 27 of the Scheme.]

33. [Disbursement of pension and other benefits. - The Commissioner shall, with the approval of the Central Board, enter into arrangement for the disbursement of pension and other benefits under this Scheme with disbursing agencies like Post Office or Nationalised Banks or Treasuries or Scheduled Commercial Banks including Regional Rural Banks or Co-operative Banks. The commission payable to the disbursing agencies and other charges incidental thereto shall be met as provided in paragraph 27 of this Scheme.]

[Modified by G.S.R. 746(E), dated 27.9.2001 (w.e.f. 27.9.2001).]

34.

Registers, records, etc.

- The Commissioner shall, with the approval of the Central Board, prescribe the registers and records to be maintained in respect of the employees, the form or design of any identity card, token or disc for the purpose of identifying any employee or his nominee or a member of a family entitled to receive the pension and such other forms/ formalities as have to be completed in connection with the grant of pension and other benefits or for the continuance thereof subject to such periodical verification as may be considered necessary.

35.

Power to issue directions.

- The Central Government may issue, such' directions as may be deemed just and proper by it for resolving any difficulty in the disbursement of pension and other benefits or for resolving any difficulty in implementation of this Scheme.

36.

Regional Committee.

- The Regional Committee set up under paragraph 4 of the Employees' Provident Funds Scheme, 1952 shall advise the Central Board, on such matters, in relation to the administration of this Scheme as the Central Board may refer to it from time to time and in particular, on

(a)

progress of recovery of contributions under this Scheme both from factories and establishments exempted under section 17 of the Act and other factories and establishments covered under the Act,

(b)

expeditious disposal of prosecutions,

(c)

speedy settlement of claims relating to pension and other benefits under this Scheme.

37.

Annual report.

- The Central Board shall cause to be included in the annual report on the working of this Scheme prepared under paragraph 74 of the Employees' Provident Funds Scheme, 1952, a report on the working of this Scheme during the previous financial year.

38.

Application of the provisions of the Employees' Provident Funds Scheme, 1952.

- In regard to matters for which either there is no provision or there is inadequate provision in this Scheme the corresponding provisions in the Employees' Provident Funds Scheme, 1952 shall apply.

39.

[Exemption from the operation of the Pension Scheme.

[Substituted by G.S.R. 134, dated 28.2.1996 (w.e.f. 16.3.1996).]

- The appropriate Government may grant exemption to any establishment or class of establishments, from the operation of this Scheme, if the employees of the establishments are either members of any other Pension Scheme or purpose to be members of a Pension Scheme wherein the pensionary benefits are at par or more favourable than the benefits provided under this Scheme. Where exemption is granted to any establishment or class of establishments under this paragraph, withdrawal benefits available to the credit of the employees of such establishment(s) under the ceased Family Pension Scheme, 1971 shall be paid, subject to the consent of the employees, to the Pension Fund of the establishment(s) so exempted. An application for exemption under this paragraph shall be presented to the Regional Provident Fund Commissioner having jurisdiction by the establishment or class of establishments together with a copy of the Pension Scheme of the establishment(s) and other relevant documents as may be called for by him. On receipt of such an application, the Regional Provident Fund Commissioner shall scrutinise it, obtain the recommendations of the Central Provident Fund Commissioner and submit the same to the appropriate Government for decision. Pending disposal of application for exemption under this paragraph, employers' share of the contribution shall not be remitted to the Pension Fund as envisaged in sub-paragraph (1) of paragraph 3. An application for exemption presented under this paragraph shall be disposed of within a period of six months from the date of its receipt or such further time as may be extended for reasons to be recorded in writing. If the application for exemption is not disposed of within the period so specified, the exemption applied for shall be deemed to have been granted.

Explanation. - For the purpose of this paragraph, the period of six months will count from the date on which the application for exemption is given in complete form to the satisfaction of the Regional Provident Fund Commissioner.]

39A.

[Submission of return.

[Inserted by G.S.R. 747(E), dated 27.9.2001 (w.e.f. 28.9.2001).]

- The employer of the exempted establishment or class of establishments and/or the Board of Trustees of the exempted establishment or class of establishments shall submit a monthly return to the Commissioner in Form 1.]

39B.

[Transfer value.

[Inserted by G.S.R. 430(E), dated 19.5.2003 (w.e.f. 23.5.2003).]

- In case exemption is granted to any establishment or in the case of a member being transferred from pension fund of one exempted establishment to another pension fund of exempted establishment or statutory pension fund or vice versa, a transfer value payment will be made which will consist of the following:

(a)

Withdrawal benefit relating to past service period upto 15-11-1995 as per Table A multiplied by Table B factor for the period between 16-11-1995 to the date of exemption/transfer, and

(b)

Transfer value for pensionable service as per Table E for the service rendered from 16-11-1995 or from the date of joining the establishment to the date of exemption/transfer, as the case may be.

(c)

In the event of cancellation of exemption granted under Para 39, transfer of fund will be made as per the conditions mentioned in the exemption notification.]

40.

Information to the Central Government.

- The Central Board shall furnish such information to the Central Government from time to time in respect of the income and expenditure from the Employees' Pension Fund Account in such manner as may be directed by the Central Government.

41.

Interpretation.

- Where any doubt arises with regard to the interpretation of the provisions of this Scheme, it shall be referred to the Central Government who shall decide the same.

42.

Punishment for failure to submit return, etc.

- If any person,

(a)

deducts or attempts to deduct from the wages or other remuneration of the member, the whole or any part of the employers' contribution, or

(b)

fails or refuses to submit any return, statement or other documents required by this Scheme or submits a false return, statement or other documents, or makes a false declaration, or

(c)

obstructs any Inspector or other official appointed under the Act or this Scheme in the discharge of his duties or fails to produce any record for inspection by such Inspector or other officials, or

(d)

is guilty of contravention of or non-compliance with any other requirement of this Scheme, he shall be punishable with imprisonment, which may extend to one year or with fine, which may extend to five thousand rupees or with both.

43.

Payment of pension in the case of a person charged with the offence of murder.

(1)

If a person, who in the event of the death of a member of the Pension Fund is eligible to receive pension of the deceased under paragraph 12 or paragraph 16, is charged with the offence of murdering the member or for abetting the commission of such an offence, his claims to receive pension shall remain suspended till the conclusion of the criminal proceedings instituted against him for such offence.

(2)

If on the conclusion of the criminal proceedings referred to in sub-paragraph (1), the person concerned is

(a)

convicted for the murder or abetting in the murder of the member, he shall be debarred from receiving pension which shall be payable to other eligible members, if any, of the family of the member; or

(b)

acquitted of the charge of murder or abetting the murder of the member, pension benefit shall be payable to him.
43A.

[Special provisions in respect of International Workers.

[Inserted by G.S.R. 705(E), dated 1.10.2008 (w.e.f. 1.10.2008).]

- The Scheme shall, in its application to International Workers as defined in paragraph 83 of the Employees' Provident Fund Scheme, 1952 be subject to the following modifications, namely:-

(1)

For clause (xv) of paragraph 2, the following clause shall be substituted, namely:

(xv)

"pensionable service" means the service rendered by the member covered by an international social security agreement for which contributions have been received or are receivable, the period of service rendered and considered as eligible under such agreement.

(2)

For sub-para (1) of paragraph 10, the following sub-paragraph shall be substituted, namely:

10. Determination of pensionable service.-(1) The pensionable service of the member covered by an international social security agreement shall be determined with reference to the contributions received or are receivable on his behalf in the Employees' Pension Fund, the period of service rendered under a relevant social security programme and considered as eligible for benefits shall be added only for the purpose mentioned under such agreement.

(3)

For paragraph 11, the following paragraph shall be substituted, namely:

11. Determination of pensionable salary.-The pensionable salary shall be the average monthly pay drawn in any manner including on piece-rate basis during the contributory period of service of the membership of the Employees' Pension Fund.

(4)

For paragraph 14, the following paragraph shall be substituted, namely:

14. Benefits on leaving service before being eligible for monthly members' pension.-(1) If a member not being an Indian employee, hailing from a country with which India has entered into a social security agreement, has not rendered the eligible service prescribed in paragraph 9 on the date of exit, or on attaining the 58 years of age, whichever is earlier, he/she shall be entitled to a benefit as may be prescribed in the said Agreement on reciprocal basis.

(2)

If a member not being an Indian employee hailing from a country with which India has not entered into a social security agreement, has not rendered the eligible service specified in paragraph 9 on the date of exit, or on attaining the 58 years of age, whichever is earlier, his/her entitlement to the withdrawal benefit under paragraph 14 shall be, on the principle of reciprocity, as may be available to Indian employees in that country."]

43B.

[Special provision in respect of Employees' Enrollment Campaign, 2017.

[Inserted by Notification No. G.S.R. 1191(E), dated 30.12.2016 (w.e.f. 16.11.1995).]

- The exceptions and modifications subject to which the provisions of this Scheme shall apply, in relation to the employees' whose membership have been declared under paragraph 82A of the Employees' Provident Funds Scheme, 1952, in accordance with the Employees' Enrollment Campaign, 2017, shall be as follows, namely:--

In paragraph 5, in sub-paragraph (1), for the table, the following table shall be substituted, namely:--

Table

(Applicable for remittances in respect of valid declarations under Employees' Enrollment Campaign, 2017)

Period of default

Rate of damages

(1)

(2)

Between the 1st day of April, 2009 to

the 31st day of December, 2016

One rupee per annum.]

44.

Repeal and savings.

(1)

On commencement of this Scheme, the Employees' Family Pension Scheme, 1971, in force immediately before such commencement, shall cease to operate with effect from the 16th November, 1995.

(2)

Notwithstanding anything contained in sub-paragraph (1) every nomination made under the Employees' Family Pension Scheme, 1971, and every form regarding the details of family of an employee for the purposes of the Employees' Family Pension Scheme, 1971, shall be deemed to have been made under the provisions of this Scheme.

(3)

All orders/authorisations/Pension Payment Orders issued under the Family Pension Scheme, 1971 shall be deemed to have been made under this Scheme.

TABLE-A

(See paragraph 14)

WITHDRAWAL BENEFIT

No. of full years contribution paid

Proportion of pay payable at cessation of membership

No. of Full years contribution paid

Proportion of pay payable at cessation of membership

(1)

(2)

(1)

(2)

1

0.20

21

5.21

2

0.41

22

5.52

3

0.62

23

5.83

4

0.84

24

6.14

5

1.06

25

6.46

6

1.29

26

6.79

7

1.51

27

7.12

8

1.75
28
7.46
9
1.98
29
7.81
10
2.23
30
8.16
11
2.47
31
8.52
12
2.72
32
8.89
13
2.98
33
9.26
14
3.24
34
9.64
15
3.51
35
10.03
16
3.78
36
10.43
17
4.05
37
10.83
18
4.34
38
11.24
19
4.62
39
11.66
20
4.92
40
12.08

[TABLE-B

[Substituted by G.S.R. 438(E), dated 9.6.2008 (w.e.f. 10.6.2008).]

(See paragraphs 12 and 14)

FACTOR FOR COMPUTATION OF PAST SERVICE BENEFIT UNDER THE CEASED FAMILY PENSION SCHEME
FOR EXISTING MEMBERS ON EXIT FORM THE EMPOLYMENT.

(1)

(2)

(1)

(2)

YEARS

FACTOR

YEARS

FACTOR

Less than 1

1.039

Less than 18

3.845

Less than 2

1.122

Less than 19

4.152

Less than 3

1.212

Less than 20

4.485

Less than 4

1.309

Less than 21

4.843

Less than 5

1.413

Less than 22

5.231

Less than 6

1.526

Less than 23

5.649

Less than 7

1.649

Less than 24

6.101

Less than 8

1.781

Less than 25

6.589

Less than 9

1.923

Less than 26

7.117

Less than 10

2.077

Less than 27

7.686

Less than 11

2.243

Less than 28

8.301

Less than 12

2.423

Less than 29

8.965

Less than 13

2.616

Less than 30

9.682

Less than 14

2.826

Less than 31

10.457

Less than 15

3.052

Less than 32

11.294

Less than 16

3.296

Less than 33

12.197

Less than 17

3.560

Less than 34

13.173]

TABLE-C

(See paragraph 16)

EQUIVALENT WIDOW PENSION

Salary at day of death not more than

Equivalent widow pension

Salary at day of death not more than

Equivalent widow pension

Salary at day of death not more than

Equivalent widow

pension

Salary at day of death not more than

Equivalent widow

pension

Salary at day of death

not more than

Equivalent widow pension

(1)

(2)

(1)

(2)

(1)

(2)
(1)
(2)
(1)
(2)
(Rupees)
(Rupees)
(Rupees)
(Rupees)
(Rupees)
(Rupees)
(Rupees)
(Rupees)
(Rupees)
(Rupees)
Upto 300
250
2850
1221
[6550
[Inserted by Notification No. G.S.R. 227(E), dated 26.3.2015 (w.e.f. 1.9.2014).]
2056
9700
2371
12850
2686
350
327
2900
1241
6600
2061
9750
2376
12900
2691
400
343
2950
1261
6650
2066
9800
2381
12950
2696
450
359
3000
1281
6700

2071
9850
2386
13000
2701
500
375
3050
1301
6750
2076
9900
2391
13050
2706
550
391
3100
1321
6800
2081
9950
2396
13100
2711
600
408
3150
1341
6850
2086
10000
2401
13150
2716
650
425
3200
1361
6900
2091
10050
2406
13200
2721
700
442
3250
1381
6950
2096

10100
2411
13250
2726
750
459
3300
1401
7000
2101
10150
2416
13300
2731
800
476
3350
1421
7050
2106
10200
2421
13350
2736
850
493
3400
1441
7100
2111
10250
2426
13400
2741
900
510
3450
1461
7150
2116
10300
2431
13450
2746
950
527
3500
1481
7200
2121
10350

2436
13500
2751
1000
544
[3550
[Inserted by G.S.R. 747(E), dated 27.9.2001 (w.e.f. 28.9.2001).]
1501
7250
2126
10400
2441
13550
2756
1050
561
3600
1521
7300
2131
10450
2446
13600
2761
1100
578
3650
1541
7350
2136
10500
2451
13650
2766
1150
595
3700
1561
7400
2141
10550
2456
13700
2771
1200
612
3750
1581
7450
2146
10600

2461
13750
2776
1250
629
3800
1601
7500
2151
10650
2466
13800
2781
1300
646
3850
1621
7550
2156
10700
2471
13850
2786
1350
664
3900
1641
7600
2161
10750
2476
13900
2791
1400
682
3950
1661
7650
2166
10800
2481
13950
2796
1450
700
4000
1681
7700
2171
10850
2486

14000
2801
1500
718
4050
1701
7750
2176
10900
2491
14050
2806
1550
736
4100
1701
7800
2181
10950
2496
14100
2811
1600
754
4100
1721
7850
2186
11000
2501
14150
2816
1650
772
4150
1741
7900
2191
11050
2506
14200
2821
1700
797
4200
1751
7950
2196
11100
2511
14250

2826
1750
808
4250
1761
8000
2201
11150
2516
14300
2831
1800
826
4300
1771
8050
2206
11200
2521
14350
2836
1850
844
4350
1781
8100
2211
11250
2526
14400
2841
1900
862
4400
1791
8150
2216
11300
2531
14450
2846
1950
880
4450
1801
8200
2221
11350
2536
14500
2851

2000
898
4500
1811
8250
2226
11400
2541
14550
2856
2050
916
4550
1821
8300
2231
11450
2546
14600
2861
2100
935
4600
1831
8350
2236
11500
2551
14650
2866
2150
954
4650
1841
8400
2241
11550
2556
14700
2871
2200
973
4700
1851
8450
2246
11600
2561
14750
2876
2250

992
4750
1861
8500
2251
11650
2566
14800
2881
2300
1011
4800
1871
8550
2256
11700
2571
14850
2886
2350
1030
4850
1881
8600
2261
11750
2576
14900
2891
2400
1049
4900
1891
8650
2266
11800
2581
14950
2896
2450
1068
4950
1896
8700
2271
11850
2586
15000 or more
2901]
2500
1087

5000
1901
8750
2276
11900
2591
2550
1106
5050
1906
8800
2281
11950
2596
2600
1125
5100
1911
8850
2286
12000
2601
2650
1144
5150
1916
8900
2291
12050
2606
2700
1163
5200
1921
8950
2296
12100
2611
2750
1182
5250
1926
9000
2301
12150
2616
2800
1201
5300
1931
9050

2306
12200
2621
5350
1936
5950
1996
9100
2311
12250
2626
5400
1941
6000
2001
9150
2316
12300
2631
5450
1946
6050
2006
9200
2321
12350
2636
5500
1951
6100
2011
9250
2326
12400
2641
5550
1956
6150
2016
9300
2331
12450
2646
5600
1961
6200
2021
9350
2336
12500
2651

5650
1966
6250
2026
9400
2341
12550
2656
5700
1971
6300
2031
9450
2346
12600
2661
5750
1976
6350
2036
9500
2351
12650
2666
5800
1981
6400
2041
9550
2356
12700
2671
5850
1986
6450
2046
9600
2361
12750
2676
5900
1991
6500
2051]
9650
2366
12800
2681
[***]

[Note omitted by G.S.R. 747(E), dated 27.9.2001 (w.e.f. 28.9.2001).]

[TABLE-D

[Substituted by G.S.R. 438(E), dated 9.6.2008 (w.e.f. 10.6.2008).]

(See paragraph 14)

RETURN OF CONTRIBUTION ON EXIT FROM THE EMPLOYMENT

Years of service

Proportion of wages at exit

Years of service

Proportion of wages at exit

1

1.02

6

6.07

2

1.99

7

7.13

3

2.98

8

8.22

4

3.99

9

9.33

5

5.02

Note: The above table is based on a flat addition in benefit.]

[TABLE-E

[Substituted by G.S.R. 514(E), dated 10.7.2009 (w.e.f. 10.7.2009).]

(See paragraph 39-B)

TRANSFER VALUE OF CONTRIBUTION FROM EMPLOYEES PENSION SCHEME, 1995
TO EXEMPTED OR OTHER PENSION FUND AND VICE VERSA

No. of full year's contribution paid

Proportion of pay on last contribution month

No. of full year's contribution paid

Proportion of pay on last contribution month

1.

0.987

13.

14.841

2.

1.998

14.

16.182

3.

3.033

15.

17.554

4.

4.093

16.

18.960

5.
5.178
17.
20.399
6.
6.289
18.
21.872
7.
7.426
19.
23.380
8.
8.590
20.
24.924
9.
9.782
21.
26.505
10.
11.003
22.
28.123
11.
12.252
23.
29.780
12.
13.531
24.
31.477]

[FORM 1]

[Inserted by G.S.R. 747(E), dated 27.9.2001 (w.e.f. 28.9.2001).]

(See paragraph 39-A)

Monthly return to be submitted by the exempted establishments/class of establishments/Board of trustees.

1.

Details of Establishment:

(a)Name of the establishment with full address:

(b)Code No.allotted by the Employees Provident Fund Organisation:

2.

Details of employees

(include all branches/units,etc.):

(a)No. of employees as at the end of previous month:

{|

|-

|

|

(b)

No.of employees who joined during the month.

|

|
|
|

(c)

No. of employees who left service during the month:

|
|
|

| (d) No. of employees as at the end of the mon:

|
|
|
|

(a)

[+(b)-(c)]

|
|
|

| (e) Out of (d) above, No. of excluded employees:

|
|
|

| (f) No. of Pension Fund members as at the end of the month [Please furnish the above mentioned details unit-wise situated at different places.

|
|
|
|

Attach separate sheet, if necessary]:

|
|
|

| 3.

| Constitution of Board of Trustees:

|
|
|
|

(a)

Date on which the present Board was constituted:

| DD MM YYYY

|
|
|

(b)

Its term:

|
Years

|
|

| (c) Total number of Trustees:

|

|
|
|

(i)

Employee's Representatives:

|
|
|
|
|

(ii)

Employers Representatives:

|
|
|

| 4.

| Wages, contributions, etc.:

|
|
|
|
|

(a)

Amount of gross wages liable to Pension Contribution:

|
|
|
|
|

(b)

Rate of contribution to Pension Fund:

|
|
|
|
|

(c)

Amount of Pension contribution to be transferred for the current month:

| Rs.

|
|
|
|

(d)

Amount of arrears due, if any, for transfer to the Board of Trustees at the end at the previous month:

| Rs.

|
|
|
|

(e)

Total of (c) and (d):

| Rs.

|
|
|
|

(f)

Amount actually transferred to the Board of Trustees:

| Rs.

| -

|

|

(g)

Balance due, if any, for transfer to the Board of Trustees [(e)-(f)]:

| Rs.

| -

|

|

(h)

Whether the interest payable under section 7-Q of the Act for the belated transfer of Funds, if any, has been paid?

|

Yes

No

| -

|

|

(i)

Amount of interest still payable at the end of the month:

|

| -

| 5.

| Details of pensioners:

|

| -

|

|

(a)

No. of pensioners at the end of the month:

|

| -

|

| (i) Member (Self) Pensioners:

|

| -

|

|

-Superannuation Pension:

|

| -

|

|

-Early Pension:

|

| -

|

|

-Disablement Pension:

|

| -

|
| (ii) Spouse Pensioners:

|
|-

|
|

-Death in service:

|
|-

|
|

-Death away from service:

|
|-

|
|

-Death as pensioner:

|
|-

| (iii) Children Pensioner:

|
|-

|
|

-Normal Children:

|
|-

|
|

-Disabled Children:

|
|-

|
|

| (Life-long pension)

|
|-

|
|

(iv)
Orphan Pensioner:

|
|-

|
|

(v)
Nominee Pensioner:

|
|-

|
|

(vi)

Dependent Parents Pensioner:

|

| -

|

|

(b)

Total amount of pension paid during the month:

| Rs.

| -

| 6.

| Details of Exit Cases:

|

| -

|

|

(a)

No. of persons who have taken withdrawal benefit during the month:

| Rs.

| -

|

|

(b)

Amount paid during the month:

|

| -

|

|

No. of exit cases where Scheme certificate has been issued:

|

| -

| 7.

| Details of investment:

|

| -

|

|

(a)

Amount lying invested in the Pension Fund in the beginning of the month:

| Rs.

| -

|

| (b) Amount received during the month-

|

| -

|

|

(i)

By way of contribution from the employer:

|

| -

|
|
-Current month:

| Rs.

|-

|

|

-Arrears, if any:

| Rs.

|-

|

|

(ii)

Encashment of matured securities/deposits

| Rs.

|-

|

|

(iii)

Interest/dividend on investments:

| Rs.

|-

|

|

(iv)

Other transfer-in-cases:

| Rs.

|-

|

|

(v)

Damages, if any:

| Rs.

|-

|

|

(vi)

Interest on belated payments, if any:

| Rs.

|-

|

|

(vii)

Miscellaneous, if any

(please specify):

| Rs.

|-

|

|

(c)

Payments made during the month

| Rs.

| -

|

| (d) Amount invested during the month:

|

| -

|

| Securities

|

| -

|

|

-Central Government

| Rs.

| -

|

|

-State Government:

| Rs.

| -

|

|

-Others, if any:

| Rs.

| -

|

| Deposits

|

| -

|

|

-Public Financial Institutions/Banks:

| Rs.

| -

|

|

(e)

Whether pattern of investment followed?

| Yes

| -

|

|

(f)

If so, classify the percentage:

| No

| -

|

| (i) Securities

|

| -

|

|

-Central Government:

|

|-

|

|

-State Government

|

|-

|

|

-Others

|

|-

|

| (ii)Deposits

|

|-

|

|

-Public Financial Institutions/Banks:

|

|-

|

|

(iii)

Annuity purchased from Life Insurance Corporation:

| Rs.

|-

|

|

(g)

Amount lying un-invested in Cash/Bank:

| Rs.

|-

| 8.

| Mode of Disbursement:

|

|-

|

|

☐Tick one

|

|-

|

|

-Through Bank:

|

|-

|

|

-Though Post Offices:

|
|-
|
|

-Through LIC by purchase of Annuity:

|
|-
|
|

-Other, if any (Please specify):

|
|-
| 9.

| Rules of Establishment's Pension Fund:

|
|-
|

| Details of amendment, if any, carried out during the month to make the rules at par with the Statutory Pension Scheme (Employees Pension Scheme, 1995):

|
.....
.....

|-

| Date.....

.....

| Signature with Official Seal of the Employer/Trustees of the Board]

|}

FORM 2

THE EMPLOYEES' PROVIDENT FUNDS SCHEME, 1952

[See paragraphs 33 and 61(1)]

THE EMPLOYEES' PENSION SCHEME, 1995

(Paragraph 18)

Declaration and nomination form under the Employees' Provident Funds Scheme and Employees' Pension Scheme

1. Name (in block letters)
2. Father's/Husband's Name
3. Date of Birth
4. Sex
5. Marital Status
6. Account No
7. Address
Permanent
Temporary
8. (A) Date of joining of EPF Scheme, 1952
(B)
Date of joining of EPF Scheme, 1971
(C)
Date of joining of EPF Scheme, 1995

Part A ? (EPF)

I hereby nominate the person(s) /cancel the nomination made by me previously and nominate the person(s), mentioned below to receive the amount standing to my credit in the Employees' Provident Fund, in the event of my death:

Name of the nominee/nominees

Address

Nominee's relationship with the member

Date of Birth

Total amount or share of accumulations in Provident Fund to be paid to each nominee

If the nominee is a minor, name and relationship and address of the guardian who may receive the amount during the minority of nominee

(1)

(2)

(3)

(4)

(5)

(6)

1.

*Certified that I have no family as defined in Para 2(g) of the Employees' Provident Funds Scheme, 1952 and should I acquire a family hereafter the above nomination should be deemed as cancelled.

2.

*Certified that my father/mother is/are dependant upon me.

Signature of thumb-impression of the subscriber

*Strike out whichever is not applicable.

Part B ? (EPS)

(See paragraph 18)

I hereby furnish below particulars of the members of my family who would be eligible to receive widow/children pension in the event of my death:

Sl.No.

Name and address of the family members

Address

Date of Birth

Relationship with the member

(1)

(2)

(3)

(4)

(5)

1.

2.

3.

*Certified that I have no family as defined in Para 2(vii) of the Employees' Pension Scheme, 1995 and should I acquire a family hereafter I shall furnish particulars thereon in the above form.

I hereby nominate the following person for receiving the monthly widow pension admissible under Para 16(2)(a)(i) and (ii) in the event of my death without leaving any eligible family member for receiving pension.

Name and Address of the nominee

Date of Birth

Relationship with the member

Date.....Signature or thumb-impression of the subscriber

*Strike out whichever is not applicable.

Certificate by Employer

Certified that the above declaration and nomination has been signed/thumb-impressed before me by Shri/Smt./Km employed in my establishment after he/she has

read the entries. The entries have been read over to him/her by me and got confirmed by him/her.

Signature of the Employer or other

Authorized Officer of the Establishment

Place.....Designation.....

Date.....Name and Address of the Factory/

Establishment or rubber stamp thereof

FORM 3(EPS)

(For Exempted Establishment only)

THE EMPLOYEES PENSION SCHEME, 1995

[See paragraph 20(1)]

Consolidated Return of employees who are entitled and required to become members of the Pension Fund on the date the Pension Scheme comes into force.

Name and Address of the Establishment.....Date of coverage.....

Industry in which the Establishment is engaged.....Code No. of the Establishment.....

Registration Number of the Establishment.....

Sl.No.

Account No.

Name of the employee

(in block capitals)

Father's Name or Husband's Name (in case of married woman)

Basic wages,D.A.

including cash value of food concession & retaining allowance, if any

Date of Birth

Sex

Date of entitlement for membership

Remarks

1

2

3

4

5

6

7

8

9

Date.....

Signature of the Employer or other

Station.....Authorized Officer of the Establishment

Stamp of the Establishment

The information received in Form 5(PS) in respect of the members leaving service shall be entered in this form by Commissioner specifying clearly the reason for leaving service.

Note:-This form should be accompanied by declaration in Form 2 by every employee mentioned in column 3.

FORM 4 (EPS)

(For Exempted Establishments only)

THE EMPLOYEES PENSION SCHEME, 1995

Return of employees entitled for membership of the Employees Pension Fund during the month of.....20.....

Name and Address of the Establishment.....

Code No. of the Establishment.....

Sl.No.

Account No.

Name of the employee

The Employees' Pension Scheme, 1995

(in block capitals)

Father's Name or Husband's Name (in case of married woman)

Age at entry

Sex

Date of entitlement for membership

Remarks Previous Account No. and particulars of previous service, if any

1

2

3

4

5

6

7

8

Date:

Stamp of the Establishment

.....

Signature of the Employer or other

Authorized Officer of the Establishment

Note:-An employee who has attained 58 years and/or for drawing Pension under the EPS-95 is not to be enrolled as a member.

FORM 5(EPS)

(For Exempted Establishments only)

THE EMPLOYEES PENSION SCHEME, 1995

[See paragraph 20(2)]

Return of Members Leaving Service during the month of20.....

Name and address of the Establishment.....

Code No. of the Establishment.....

Sl.No.

Account No.

Name of the member(in block capitals)

Father's Name or Husband's Name (in case of married woman)

Date of leaving service

Reason for leaving service (See note given below)

Remarks

1

2

3

4

5

6

7

.....

Signature of the Employer

Stamp of the Establishment

Note.-An employee who has attained the age of 58 years will cease to be a member of the Scheme and entitled to receive the due benefit under the Employees Pension Scheme, 1995

FORM 6

(For Exempted Establishments only)

THE EMPLOYEES PENSION SCHEME, 1995

(See paragraph 20)

Statement of Contribution for the month of.....20.....

Total No. of Employees.....(Contract) Rest Total)

Total No. of Subscribers.....

Name and address of the Establishment.....

Currency period from 1st April, 20.....to 31st March, 20.....

Code No. of the Establishment.....Statutory Rate of Contribution 8.33%.....

Total No. of Subscribers

Wages for which contributions are payable

Amount of contribution due 8.33%

Amount of contribution remitted in A/c No. 10

Date of Remittance

(Triplicate copy of the challan to be enclosed)

Name and Address of the bank in which amount is remitted.

(1)

(2)

(3)

(4)

(5)

(6)

No. of Subscribers as per last month's return.....

Add No. of new Subscribers-vide Form 4(PS).....

Less No. of Subscribers left service-vide Form 5(PS).....

Signature of the Employer)

(with official seal)

Net total:

(This should tally with the figures given in column 1)

Date.....

Note.-(1) IF there is any substantial variation between the wages and contribution shown above and those shown in the last month's return, suitable explanation should be given in the "Remarks" column.

(2)

If any arrears of contributions or damages are included in the figures under the column 4, suitable details indicating the circumstances, amount, No. of subscribers and the period involved should be furnished in the "Remarks" column or on the reverse

FORM 7

(For Exempted Establishments only)

THE EMPLOYEES' PENSION SCHEME, 1995

(See paragraph 19)

Contribution Card for members for the year 20.....20.....

(1)

Account No.....

(2)

Name (in block capitals).....

(3)

Father's/Husband's Name.....

(4)

Name and Address of the Establishment.....

(5)

Statutory Rate of Contribution 8.33%.....

Month

Amount of wages, retaining allowance, if any and DA including cash value of food concession paid during the month

Contribution to Pension fund 8.33%

Remarks

(1)

(2)

(3)

(4)

April, 20....

May

June

(a)(a) Date of leaving service

July

.....

August

September

October

November

December

(b) Reason for leaving service

January

.....

February

March

Rs.

Rs.

Certified that the difference between the total contributions shown under column (3) of the above and that arrived at the total wages shown in column (2) at the prescribed rate is solely due to the rounding off of contribution to the nearest Rs. under the rules.

Certified that the total amount of contributions indicated under column (3) has already been remitted in full in Account No. 10 (Pension Fund Contributions).

Date.....Signature of Employer

(Office Seal)

FORM 8(EPS)

(For Exempted Establishment only)

THE EMPLOYEES' PENSION SCHEME, 1995

(See paragraph 20)

Annual Statement of Contribution for the currency period From 1st.....20.....to.....20

Name and Address of the Establishment.....

Code No. of the Establishment.....

Sl.No.

Account Number

Name of the members

(in block letters)

Wages, retaining allowances (if any) and D.A. including cash value of food concession paid during the currency period

Employer's Contribution Pension Fund 8.33% (Rs.)

Remarks

1

2

3

4

5

6

{|

Reconciliation of Remittances

Sl. No

Month

Pension Fund Contribution Account No.10

1

Rs.

2

Rs.

3

Rs.

4

Rs.

5

Rs.

6

Rs.

7

Rs.

8

Rs.

9

Rs.

10

Rs.

11

Rs.

12

Rs.

Total

Rs.

| Total Rs.

Rs.

Aggregate

Contributions

Certified that the difference between the figures of total Pension Fund contributions remitted during the currency period and those shown in Cols. 5&6 is solely due to the rounding off amounts to the nearest rupee under the rules.

| Rs.

[

]Cols.5 7 6 Rs.

[

]

(i)

Total number of contribution card enclosed [Form 7]

(ii)

Certified that Form 7 duly completed, of all the members listed in this statement are enclosed except those already sent during the course of the currency period for the final settlement of the concerned members account vide "Remarks furnished against the names of the respective members above

|-

|

|

|-

| Signature of the Employer

|

|-

| [with Official Seal]

| Signature of the Employer

|-

| Note.-(1) The names of all members, including those who had left service during the currency period should be included in the statement where the Form 7(PS) in respect of such members who had left service were already sent to the Regional Office for the purpose of final settlement of their accounts, the fact should be stated against the members in the "Remarks" column above the Form 7(PS) already sent in the month of.....20.....

|-

| (2) In case of substantial variation in the wages contributions of any member as compares to shoes shown in previous month's statement the reason should be explained adequately in the "Remarks" column.

|}

FORM 9

(For Exempted Establishments only)

THE EMPLOYEES' PENSION SCHEME, 1995

(See paragraph 24)

Declaration by a person taking up employment in the establishment

I,S/o/w/o/D/o.....do hereby solemnly declare that-

(a)

I was employed in M/s.....(Name and Full Address of the establishment) with PF A/c No.....and left service on.....Prior to that, I was employed inwith PF A/c No.....From.....to.....

(b)

I am a member of the Pension Fund from.....to.....and copy of the Scheme Certificate is enclosed.

(c)

I have/have not withdrawn the amount of my Provident Fund/Pension Fund.

(d)

I have/have not drawn any benefits under the Employees' Pension Scheme, 1995 in respect of my past service, in any establishment.

(e)

I have/have never been a member of any Provident Fund and/or Pension Fund.

Date.....*Signature or left hand thumb-impression of the employee

Encl: Copy of Scheme Certificate

(To be filled by the Employer)

(1)

Shriis appointed as.....

(Name of Employees)

(Designation)

in M/s.....with effect from.....

(Name of the Factory/Establishment)

(Date of appointment)

(2)

Copy of the Scheme Certificate is enclosed.

(3)

Declaration and nomination in Form 2 is enclosed

Date.....Signature of the Employer or Manager

or other Authorized Officer

*Left hand thumb-impression in the case of illiterate male member and right hand thumb-impression by illiterate female member.

FORM 10-C

THE EMPLOYEES' PENSION SCHEME, 1995

The Employees' Pension Scheme, 1995

Form to be used by a member of the Employees' Pension Scheme, 1995 for claiming withdrawal benefit only Inward No(for office use only).....

1. Name of the member (in block letters)

2. (a) Father's Name

(b)

Husband's Name

3. Name and address of the factory /establishment in which the member was last, employed

.....

4. Code NoAccount No.....

5. Reasons for leaving service and date of leaving

6. Full postal address (in block letters)

Sh./Smt./Km %.....

S/o W/o D/o

Pin

7. Mode of remittance [Put a tick (✓) in the box ^ against the one opted]

(a)

By postal money order at my cost to the address given against item No. 6 ^

(b)

By account payee cheque sent direct for credit to my SB A/c. (Scheduled Bank/

PO) under intimation to me ^

SB Account No

Name and branch of the bank(in capital letters)

Full address of the branch (in capital letters)

Certified that the particulars are true to the best of my knowledge.

Date Signature or left hand thumb-impression of the member

ADVANCE STAMPED RECEIPT

[To be furnished only in case of 7(b) overleaf]

Received a sum of Rs(Rupees.....only) from Regional Provident Fund Commissioner/Officer-in-charge of Sub-Regional Office by deposit in my Saving Bank A/c. towards the settlement of my Pension Fund Account.

(The space should be left blank which shall be filled in by RPFC/Officer-in-charge).

Revenue Stamp

.....

Signature or left hand thumb-impression

of the member on the stamp

Certified that the particulars of the members given are correct and the member has signed/thumb-impressed before me.

Date.....

Signature of the Employer with Official Seal.

(For the use of Commissioner's Office)

Control Nodated.....the benefit is authorized as under:

Account settled.

(Under Rs.)

P.I. NoM.O./Cheque

Passed for payment of Rs(in words).....

MO Commission (if any)

Net amount to be paid by MO

DateAssistant Accounts Officer

For use in cash section

Paid by inclusion in Cheque No.....dated.....vide Cash Book (Bank) Account No. 10,Debit Item No.....

Head ClerkAC/RC

FORM 10-D (EPS)

EMPLOYERS' PENSION SCHEME, 1995

APPLICATION FOR MONTHLY PENSION

(Read Instructions before filling in this Form)

Inward No.....(For Office Use only)

1.

By whom the pension is claimed?

{|

|-

|

2.

|

Type of Pension claimed

|

|

|-

| 3.

| (a) Member's Name (in block-letters)

| :

|

|-

|

| (b) Sex

| :

|

|-

|

| (c) Marital Status

| :

|

|-

|

| (d) Date of Birth/Age

| :

|

|-

|

| (e) Father's/Husband's Name

| :

|

|-

|

4.

|

E.P.F. Account Number

|

| {|

|-

| RO

| SRO

| Establishment Code No.

|-

|
|
|
|-
| Member's Account No.
{
}
-
}
-
5.
Name and Address of the establishment in which the member was last employed
:
.....
.....
-
6.
Date of leaving service
:
.....
-
7.
Reason for leaving service
:
.....
-
8.
Address for communication
:
.....
-
.....
-
.....
-
PIN:.....
-
9.
Option for commutation of 1/3 of Quantum

| :
{
Yes
No
Amount
-
{
-
}
{
-
}
{
-
}
}
-
10.
|
Option for Return of Capital (Please refer: Serial Number 10 of Instructions)
| :
|
Yes
No
{
{
}
}
-
11.
Mention your nominee for return of capital
:
.....
-
Name
:
.....
-
Relationship
:
.....
-

|
| Date of Birth
| :
.....

|
| Address
| :
.....

| 12.
| Particulars of Family
| :
|
|}

Sl.No.
Name
Date of Birth/Age
Relationship with member
Indicate against minor
Guardian's name
Relationship with member

(1)
(2)
(3)
(4)
(5)
(6)

Note.-If any child is physically handicapped, please indicate "Disabled"
below the name.

13.
Date of death of Member (if applicable)
:
.....

14.
Details of Savings Bank Account opened
:
.....

(1)Name of the Bank
:
.....

(2)Name of the Branch
:
.....

(3)Full Postal Address
:
.....

PIN CODE.....
Sl.No.

Name of the Claimant(s)
Savings Bank Account No.

14-A.

If the claim is preferred by nominee, indicate his/her

:

.....

(1)(1)Name

:

.....

(2)(2)Relationship with the deceased Member

:

.....

15.

Details of Scheme Certificate already in possession of the Member, if any

Scheme Certificate received and enclosed

{|

|-

|

|

| Not Received

| {|

|-

|

|}

|-

|

|

| Not Applicable

| {|

|-

|

|}

|-

||||

|}

SL.No.

Scheme Certificate Control No.

Authority who issued the Scheme Certificate

16.

If pension is being drawn under Employees' Pension Scheme, 1995

:

PPO No. issued

{|

RO

SRO

|-

| 17.

| Documents enclosed (Indicate as per the instructions)

|-

|

| (1)

| (6)

|

|-

|

| (2)

| (7)

|

|-

|

| (3)

| (8)

|

|-

|

| (4)

| (9)

|

|-

|

| (5)

| (10)

|

|}

TO BE SUBMITTED IN DUPLICATE IN RESPECT OF EACH PERSON ELIGIBLE FOR PENSION

Descriptive roll of Pensioner and his/her specimen signature/
thumb-impression

:

.....

1.

Name of the Member

:

.....

2.

E.P.F. Account Number

:

.....

3.

Name of the Pensioner

:

.....

4.

Father's/Husband's Name

:

.....

5.

Sex

:

.....

6.

Nationality

:

.....

7.

Religion

:

.....

8.

Height

:

.....

9.

Personal Marks of Identification

:

(1)

(2)

10.

Specimen Signature of Pensioner

:

(1)

:

(2)

:

(3)

11. (Only in the case of illiterate Claimant (Pensioner) Left Hand Finger-impression):

{

Thumb

Index

Middle

Ring

Small

}

Signature.....

Place:Name of Attesting Authority.....

Date:Official Seal:

Certified that:

(i)

I am not drawing pension under Employees' Pension Scheme, 1995.

(ii)

The particulars given in this application are true and correct.

.....

Signature of the applicant/

Left hand thumb-impression

TO BE FILLED IN THE EMPLOYER, AUTHORISED OFFICER OF THE ESTABLISHMENT

Certified that:

(i)

the particulars of the member are correct:

(ii)

the particulars of Wages and Pension Contribution for the period of 12 months preceding the date of leaving service are as under:

(In case, the wages is not earned for all 12 months, the block of 12 months will commence backwards from the last pay drawn)

Year

Month

Wages

Pension contribution due

Details of period of non-contributory service. If there is no such period, indicated "Nil"

No.of days

Amount

Year

No of days for which no wages were earned

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Encl. 1. Documents as given in the Instructions.

2. Form of descriptive roll and specimen signature.

.....

Signature of Employer/Authorized Official

of the Establishment with Seal and Date

(FOR OFFICE USE ONLY)

(PENSION SECTION/ACCOUNTS SECTION)

Certified that the particulars in the application have been verified with the relevant concerned documents. The claimant is eligible for pension. The Input Date Sheet is placed below for approval.

Entered in Form 9/Form 3(PS), Master Ledger Card/Claim Inward Register

Form 2(R) enclosed alongwith the documents furnished by the claimants.

Clerk

S.S

A.A.O

A.P.F.C.

Date

Date

Date

Date

FOR USE IN PENSION PRE-AUDIT CELL

The Input Date sheet verified with reference to the application and the documents enclosed and found correct P.P.P. may be generated through Computer.

Clerk

S.S

A.A.O

A.P.F.C. (Pension)

Date

Date

Date

Date

FOR USE IN PENSION DISBURSEMENT SECTION

P.P.O.

:

.....

Date of issue to the Bank

:

.....

Intimation sent to the claimant and also to Accounts Branch on

:

.....
Clerk

S.S

A.A.O

A.P.F.C.

Date

Date

Date

Date

FROM 10-D(EPS)

EMPLOYEES' PENSION SCHEME, 1995

Application for monthly pension

(To be submitted in two copies in case pension is to be drawn in other region)

EXPLANATORY NOTE FOR THE APPLICATION

Serial No. given below relates to the Corresponding No. given in the application.

1. By whom the pension is claimed?

Indicate any one of the following under Sl.No. 1

Member

Widow/Widower

Major Orphan

Guardian

Nominee

2. Type of Pension Claim-Indicate any one of the following:

(a)

On attaining 58 years whether in service or not SUPERANNUATION PENSION

(b)

Attained the age of 50 years but below 58 years and left service REDUCED PENSION

(c)

DISABLEMENT PENSION

(d)

WIDOWS AND CHILDREN PENSION

(e)

ORPHAN PENSION

(f)

NOMINEE PENSION

3. (a) to (e), 4 & 5

Please furnish the particulars relating to the member correctly.

6. Indicate the actual date of leaving service.

This need not be filled by a member who has attained 58 years and continued to be in service. Indicate "still in service".

7. If the reason for leaving service was on account of total and permanent disablement, as indicated by the establishment to the P.F. Office through Form 10, then only the member is entitled for Disablement Pension. In all other cases the actual reason for leaving service may be given. However, a member who continues in services beyond the age of 58 years may indicate "still in service".

8. If the present address is temporary one, also indicate permanent address.

9. Si. No. 9 is applicable only to a member of the Pension Scheme and not for his family. The applicant is eligible to commute upto a maximum of 1/3rd of his pension so as to receive 100 times of the pension commuted. If a pensioner who is getting an original pension of Rs. 600 commutes 1/3rd of it, he will get Rs. 20,000 as commuted value. The commutation will be effective only from 16-11-1998. The applicant may give his option for commutation in the application and this will be effective and paid only if the member-pensioner continues to draw his pension as on 16-11-1998. On opting for commuted value of pension, the original pension mentioned for Return of Capital will be the balance of

pension after commutation.

10. The member can give his option for Return of Capital. Option once exercised is final. He may choose any one of the following and indicate the no. shown under alternative against Sl. No. 10 of the application.

Alternative

Quantum of Pension

Return of Capital

1.

90% of original pension

On member's death, 100 times the original monthly pensions to nominee.

2.

90% of original pension to member.

On his/her death 80%

pension to widow/widower.

On death or remarriage of widow/widower whichever is earlier.

90 times of original pension to nominee

3.

87.5% of original pension for a fixed period of 20 years to member. On his death before 20 years, nominee will get pension for balance period

At the end of 20 years, 100 times of original pension to member, if he is alive, otherwise to nominee.

11. The member is required to furnish the details of his/her nominee for receiving the Return of Capital. A member can nominate his/her spouse or sons or daughters. A married member who is not survived by any member or his family (spouse/sons/daughters) and a bachelor/spinster may nominate a person of his/her choice to receive the Return of Capital/Pension due, if any, under alternative 3 as per Sl. No. 10 above.

12. This should be completed by the member. In his absence, by the spouse/children. The list of surviving family members of the member covering his spouse, all children should be furnished. The particulars of guardian should be given in respect of each minor child, as on the date of application. In support of the age of children, age proof certificate obtained from the School or Registrar of Birth-Deaths or E.S.I. Record, or Municipal authorities should be enclosed. In the case of guardian other than natural guardian, a Guardianship Certificate should be enclosed.

13. Applicable only in case the member is not alive. In support to the date of death, Death Certificate should be enclosed.

14. The details of Bank, Saving Bank Account number should be given.

In case the claim is preferred by spouse, he/she should give his/her Saving Bank Account Number and also separate Saving Bank Account Numbers. In respect of each child Saving Bank Account Numbers of children who are below the age of 25 years (as on date of death of the member) should be given. On behalf of minor child, Savings Bank Account opened in the name of minor and operated by the guardian of the minor and Account Number should be given.

Pension is payable through any branch of the (PNB/SBI) on the specified day of each month by credit to the Savings Bank Account of eligible pensioners. Hence, Savings Bank Account should be opened only in the said Bank. Necessary guidelines have been given to all branches of the Bank to open a Savings Bank Account for the pensioners. The applicant may approach any branch of the said bank to open the account.

The member, spouse and children (minor or major) should necessarily open Savings Bank Accounts in the same branch of the Bank.

Whenever pension is opted from a place beyond the jurisdiction of the Region in which the member was last employed, he should ascertain the name of the designated bank applicable in that Region and open a Savings Bank Account therein.

On sanction of Pension, intimation will be sent to the pensioner to contract the Bank.

14.

-A. In case of death of the member before attaining 58 years without leaving any eligible family members to receive the pension, the nominee as appointed by the member through the Form 2 (revised) already sent to the P.F. Office may apply giving his particulars against this column.

15. In case the member was working in different establishments and obtained Scheme Certificate, the details should be furnished against this column. In case, no Scheme Certificate was received or not applied for the same, the details of

past employment may be indicated in this column.

16. If the applicant is already receiving pension under Employees' Pension Scheme, 1995 or Claim Pension, the details should be furnished against the column.

17. List of documents to be enclosed and specified under Column No. 17:

(a)
Descriptive role of pensioner and his/her specimen signature/thumbt,-impression in duplicate;

(b)
3 passport size photographs (if claimed by the member, joint photo with spouse). If the pension is claimed by member, there is not need to send photograph of the children. If claimed by widow/widower, the photograph should be sent for widow/ widower and his/her two children (below 25 years) separately. The photographs are to be attested by the employer or his authorized official, indicating the person to whom the photograph relates and also the P.F. Account Number of the member, written on the reverse and placed in a separate envelope.

(c)
In the case of a member, who is permanently and totally disabled during the employment, he/she should undergo a medical examination before the Medical Board as advised by the E.P.F. Office. However, the disablement should occur while in employment.

(d)
The application should be forwarded through the establishment in which the member last served/died. The establishment should furnish the certificate and wage particulars duly attested by the authorized officer.

(e)
Only if the establishment is closed, the application should be forwarded through the Magistrate/Gazetted Officer/Bank Manager/any other authorized officer as may be approved by the Commissioner.

ACKNOWLEDGEMENT CARD

Account No_____

Seal of EPFO_____

Employees' Provident Fund Organisation

Regional/Sub-Regional Office

Received the following claims:-

Registration

1.EPF

{

19

20

13

31

| Number_____

|-

| 2.EPS

| {

|-

| 10C

|

| 10D

|}

| Dated Office

|-

| 3.EDLI

| {

|-

| 51F

|}

|
|-
| [Tick the relevant box of the form (s) received]
| Seal
|}

Back Side of the post card

In case no intimation is received within a month, you may write to the Regional PF Commissioner/Officer-in-charge of the concerned EPF Office quoting your Registration Number, Date and your P.F. Account Number.

POST CARD

{|
Postage Pre-paid

|-
|
|
|-
|
|
|-
|
|
| PIN

{
}
}

FORM 12-A (Revised)

(For Unexempted Establishments only)

EMPLOYEES' PENSION SCHEME, 1995

[See paragraph 20(4)]

Name and address of the Establishment

[To be filled in by the EPFO]

M/s.....

EstablishmentStatus

{
.....
-
Code No.

{
}

```

| {
| -
|
|
| }
|
| -
| Currency Period from 1stApril, 20.....to
|
| -
| 31stMarch,
20.
.....
| Group Code
| {
| -
|
|
|
| }
| -
| Statement of Contribution for the Month of.....
|
| -
| Statutory Rate of Contribution.....
|
| -
| | | |
| }
Particulars
Wages on which contributions are payable
Amount of contribution
Amount of contributions remitted
Amount of administrative charges due
Amount of administrative charges remitted
Date of remittance
(enclose triplicate copies of challan)
Recovered from the workers
Payable by the employer
Worker's share
Employer's share
EPF A/c.No.01
Pension Fund A/c No.
10
NIL
NIL
NIL
NIL
DLI A/c No. 21
NIL
NIL

```

Total No. of Employee.....

(a)

Contract.....

(b)

Rest.....

(c)

Total.....Name and address of the bank in which the amount is remitted.....

Details of subscribers

EPF

Pension Fund

EDLI

No.of subscribers as per last month

No. of New Subscribers

(vide Form 5)

No. of Subscribers left service (vide Form 10)

(Nett) Total Number of Subscribers

.....

Signature of the Employer with Official Seal

Related AI tags, queries and research notes

Translation